

IN THE HIGH COURT OF TANZANIA

(LAND DIVISION)

AT DAR ES SALAAM

MISC. APPLICATION NO. 469 OF 2023

SOPHIA MOHAMED JUMA.....APPLICANT

VERSUS

NMB BANK PLC.....1ST RESPONDENT

NSAMBO & COMPANY.....2ND RESPONDENT

RAMADHANI JUMA MTUNGUJA.....3RD RESPONDENT

Date of last order: 31/10/2023

Date of ruling: 16/11/2023

RULING

A. MSAFIRI, J.

This is a ruling on preliminary objection raised by the defendant in the Application. In the Application, the applicant is seeking for the orders of this Court for an extension of time to file an appeal against the decision of Kinondoni District Land and Housing Tribunal (herein the DLHT) in Application No. 81 of 2020. The Application has been brought under Section 41(2) of the Land Disputes Courts Act, Cap 216 R.E.2019. It is supported by the affidavit of the applicant, Sophia Mohamed Juma. The 1st respondent was the only one among the respondents to file her counter affidavit. The

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rest of the respondents have neither entered appearance in Court nor filed their counter affidavits.

On filing her respective counter affidavit which was affirmed by Sharifa Karanda, the principal officer of the 1st respondent, the same raised a preliminary objection to the effect that;

1. Having withdrawn extended Land Appeal No. 159/2020 without leave to refile, this application is misconceived, frivolous and in abuse of the court process as the Applicant does not have the right to re-file appeal.

By leave of the Court, the said preliminary objection was disposed of by written submissions, the schedule order was duly complied with by learned advocates for both parties. The submissions by the 1st respondent in support of preliminary objection was drawn and filed by Ms. Eunice Musami, learned advocate while the submissions by the applicant was drawn and filed by Ms. Rose Charles Nyatega, learned advocate.

Submitting on the objection, Ms. Musami, started by brief background of the matter that, prior to this instant Application, the applicant has filed two Appeals in this Court which are Land Appeal No.172/202 which was struck out by this Court (Hon. Mwenegoha, J) on 20/09/2022. The second

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appeal Extended Land Appeal No. 159/2020 was withdrawn by the applicant, without leave to refile on 18/7/2023.

She stated further that Order XXIII Rule 1 of the Civil Procedure Code Cap 33 R.E 2019 allows a plaintiff to withdraw the suit and equally Rule 1(2)(b) of the same order provide that for a party to refile the withdrawn suit one must obtain permission from the court.

The counsel submitted that on 18/7/2023, the applicant successfully prayed to withdraw her Land Appeal No.159/2020 and the Court granting the prayer stated that; *"...grant the prayer for withdraw and mark this appeal withdrawn as prayed"*

The counsel argued that it is clear from the Court's order that no order as to re-filing the appeal was pronounced by the Court. That the consequences of withdrawing a suit without leave to refile is that the applicant is barred from bringing back the same suit.

To fortify her stance, the counsel cited the cases of **Prof. Philip Odoyo Bwathondi and another vs. Abdallah Mashaka and 6675 others**, Misc. Land Application No. 206 of 2023, HC (Unreported) at DSM and **Equity for Tanzania Ltd vs. Salim Kassim Msangi**, Civil Appeal No. 21/2022 HC at DSM (Unreported).

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She submitted further that in the circumstances of this matter where the applicant withdrew her appeal without leave to refile, the applicant is precluded from refiling the appeal. She added that the applicant has no right of appeal therefore any subsequent proceedings to re-institute the appeal including extension of time is misconceived. She prayed for the Court to dismiss the Application with costs.

In response, the applicant through her counsel Ms. Nyatega submitted that, indeed, the applicant so far has filed appeals to challenge the decision of the DLHT in Land Application No.81 of 2020 which was delivered on 23/7/2021. That the first appeal was Appeal No. 172/201 which was struck out by this Court for non-joinder of necessary parties. Again, the applicant filed another Appeal No.159 of 2022 which was withdrawn by the prayer of the appellant herself.

The counsel submitted further that once the suit is withdrawn, the leave to refile is not automatic. That the applicant clearly stated before this Court that the intention of her withdrawal was to file an extension of time within which to file an extension of time to file a new appeal. The counsel argued that the applicant's prayer for withdrawal was subject to instituting a new appeal and an Application for extension of time. That by this, the counsel for the applicant believe that it was sufficient construction for

seeking leave and this prayer was positively considered by the Court. She added that it is safe to say that the permission was granted as prayed.

She stated that the applicant is a layman being assisted by LHRC under legal aid hence she appeared in person before the Court and she was in no position to use legal terminologies or understand the consequences of not stating the words "*leave to refile*" and hence this was not a negligent act on the part of the applicant.

The counsel for the applicant stated further that the cases cited by the 1st respondent are distinguishable from the case at hand because in those cases, the parties were represented by legal counsels in court who are professionals while in the case at hand the applicant had to represent herself in person in court. She invited the Court to invoke the principle of overriding objection by considering Article 107A (2) of the Constitution of the United Republic of Tanzania of 1977 and overrule the preliminary objection.

In rejoinder, the counsel for the 1st respondent mainly reiterated his submission in chief and prayers. She added that, the principle of overriding objective cannot be used in circumventing the mandatory provisions of law.

Having heard the submissions of the parties rival to this matter, the issue is whether the preliminary objection raised is on merit.

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Order XXIII Rule 1(1) of the CPC permits a party to the matter to withdraw it or abandon part of it. Rule 1(2) of the same Order provides that a party who wishes to refile the matter after withdrawal must pray for an order to withdraw with liberty to refile. Under Rule 1(3) of the same Order it is provided that where a party withdraw the matter without permission of the Court, among other things, he shall be precluded from instituting any fresh suit in respect of that subject matter.

I wholly subscribe to this position of the law and the case authorities which have reiterated this position which have been referred to me by the counsel for the 1st respondent.

However, going through the affidavit of the applicant and the counter affidavit of the 1st respondent, I have failed to see the so referred as Extended Land Appeal No. 159 of 2022. The Ruling of the said Appeal is not attached neither in the pleadings nor anywhere in the current Application. Hence, this Court have failed to ascertain the claims by the 1st respondent that the Extended Land Appeal No. 159 of 2022 was withdrawn without leave to refile hence the applicant has no right to refile or institute a new matter.

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The counsel for the applicant kept on referring this Court to the proceedings of 18/07/2023 when the said appeal was cause listed and the applicant herein who was the appellant prayed to withdraw the said appeal. But as I have already pointed out, beside the parties' submissions there is nothing to show the Court the proof on the 1st respondent's claims raised on the preliminary objection. Hence the 1st respondent's submissions are based on mere words on which this Court has no base upon which to rely. The Court was being referred to the order of the Extended Land Appeal No. 159 of 2022 which was allegedly withdrawn with no leave to refile. But since the said order was not attached, this Court cannot rely on mere submissions of the counsel.

In the circumstances I find the preliminary objection raised by the 1st respondent not to base on pure point of law as it needs facts to ascertain it.

For the foregoing reasons, I find the preliminary objection to lack merit and I hereby overrule it with costs.


 **A. MSAFIRI**
JUDGE

16/11/2023